

WOML

Word of Mouth Leads

PROVIDER AGREEMENT & LEGAL NOTICES

Effective Date: Upon Electronic Acceptance During Onboarding

This document sets forth the legal terms and notices that each Lead Provider must review and accept during the WOML onboarding process. By completing onboarding on womleads.com, you agree to all terms below. Please read carefully. WOML is a private-channel lead generation platform operated by WOML LLC (Pennsylvania). Providers are invited by a specific business ("the Agency") and may only submit leads within that Agency's private channel.

1. Terms of Service

1.1 Eligibility

- You must be at least 18 years old. Lead submissions are only accepted and payable after your government-issued ID has been successfully verified and your account approved. Any leads submitted prior to completed identity verification are not eligible for payout.
- You must be a lawfully operating business or individual authorized to provide referrals in your jurisdiction.
- You may only access WOML through an official invitation link issued by the Agency.

1.2 Permitted Use

- You may use WOML solely to submit lead referrals to the Agency that invited you.
- You may not submit false, duplicate, or fabricated lead information.
- You may not share your invite link, account credentials, or platform access with any third party.
- You may not reverse engineer, scrape, or access any portion of the platform outside your authorized channel.

1.3 Lead Submission Standards

- All submitted information must be accurate, current, and obtained with the lead's knowledge and consent.
- Leads must reflect genuine prospective customers with a real interest in the Agency's services.
- WOML and the Agency reserve the right to reject or dispute leads that do not meet quality criteria.

1.4 Termination

- Either party may terminate this agreement. The Agency sets the termination notice period (typically 30–90 days) in their channel terms.
- WOML LLC may suspend or permanently revoke your access for any violation of these terms, at its sole discretion, without prior notice.
- Earned amounts for accepted leads prior to termination remain payable subject to the payment timeline.

1.5 Modifications

- WOML LLC may update these Terms at any time. Continued use constitutes acceptance. Material changes will be communicated via SMS or email.
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2. Privacy Policy

WOML LLC is committed to protecting your personal information and the information of leads you submit.

2.1 Information We Collect

- Your name, email address, phone number, and profile photo (if uploaded).
- Your government-issued ID (collected during identity verification to comply with fraud prevention standards).
- Bank account and payout information (handled via Stripe — never stored directly by WOML).
- Lead data you submit (name, contact info, vehicle information, and any required fields specified by the Agency).
- Platform activity logs (lead submission timestamps, login events, IP address).

2.2 How We Use Your Information

- To verify your identity and eligibility as a provider.
- To process your payouts through Stripe Connect.
- To communicate with you about your account, payments, and platform updates.
- To fulfill 1099 tax reporting obligations if your annual earnings exceed \$600.
- To maintain platform security and prevent fraud.
- To analyze and improve platform performance using aggregated, anonymized data (see Section 2.3).

2.3 Data Sharing & Platform Analytics

Your privacy matters to us. WOML does not sell your personal information to third parties.

To improve the WOML platform, understand how providers use the service, and develop better features for everyone, WOML may compile aggregated, anonymized, and de-identified data derived from platform activity. This means we may analyze patterns such as lead volume, submission timing, conversion rates, and platform usage trends across all providers — in a form that cannot identify any individual provider or lead.

WOML may use this aggregated, anonymized data for internal analytics, platform improvement, industry reporting, and commercial licensing to third parties. No personally identifiable information is included in any such aggregated datasets. This does not affect your individual privacy rights.

Your basic profile (name, contact info) is shared with the Agency that invited you for lead verification purposes. We may also share data with law enforcement if required by applicable law.

2.4 Lead Data Privacy

- All lead information you submit is shared exclusively with the Agency for which the lead was submitted.
- You represent that you have the lead's consent to share their contact and vehicle information.
- WOML operates private channels — no cross-business data sharing occurs.

2.5 Data Retention

- Account data is retained for the duration of your account plus 7 years (for tax and legal compliance).
- You may request deletion of your personal data by contacting support@womleads.com, subject to legal retention obligations.

3. Independent Contractor Agreement

3.1 Independent Contractor Status

- You are an independent contractor, not an employee, agent, partner, or joint venture of WOML LLC or the Agency.
- You control the manner, method, and timing of your lead generation activities.
- You are solely responsible for your own taxes, insurance, licenses, and business expenses.
- WOML LLC will not withhold federal or state income taxes, Social Security, Medicare, or unemployment taxes from your earnings.

3.2 Earnings & Payment

- You will be compensated per accepted lead at the rate specified in your channel's Deal Terms.
- Payments are made via Stripe Connect to your linked bank account on the schedule defined by the Agency (e.g., weekly, bi-weekly, or monthly).
- WOML retains a platform fee from each transaction (disclosed in your Deal Terms).
- Payments for disputed or rejected leads may be withheld pending resolution.

3.3 No Benefits

- You are not entitled to employee benefits, including health insurance, paid time off, retirement plans, or workers' compensation through WOML LLC or the Agency.

3.4 Non-Solicitation & Non-Circumvention

The WOML platform creates value by connecting Agencies and Providers within a trusted, managed marketplace. To protect the integrity of that marketplace:

- During the term of this Agreement and for 18 months following termination or expiration, you agree not to directly solicit, approach, or establish a direct lead referral business relationship with any Agency you were connected to through WOML for the purpose of bypassing the WOML platform.
- You may not use contact information, introductions, or relationships facilitated through WOML to conduct lead referral business outside of WOML with any Agency you met through the platform.
- This section does not prohibit you from conducting business with an Agency with whom you had a documented, pre-existing relationship prior to your WOML onboarding.

WOML acknowledges that this restriction is reasonable in scope and necessary to protect the legitimate business interests of the platform.

3.5 Indemnification

You agree to indemnify, defend, and hold harmless WOML LLC, its members, officers, employees, and agents from and against any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from: (a) your lead generation activities; (b) any misrepresentation of leads or violation of applicable law; (c) your breach of this Agreement; or (d) any third-party claim related to lead data you submitted.

3.6 Governing Law & Venue

This Agreement is governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict-of-law principles. For any dispute not subject to mandatory arbitration under Section 8, the exclusive venue shall be the Court of Common Pleas of Northampton County, Pennsylvania, or the United States District Court for the Eastern District of Pennsylvania, and both parties consent to personal jurisdiction in those courts.

4. Lead Submission Standards

4.1 Accuracy Requirement

- All lead information must be accurate and current at the time of submission.
- You must have personally spoken with or obtained explicit permission from the lead before submitting their information.
- Submitting leads without prior contact or consent constitutes a material breach.

4.2 Prohibited Submissions

- Duplicate leads (same individual submitted more than once within 30 days).
- Fabricated, purchased, or scraped contact lists.
- Leads for individuals who have requested not to be contacted.
- Leads for WOML employees, agents, or their immediate family members.

4.3 Quality Standards

- Leads must be for individuals who are actively in the market for the Agency's services.
- Photo submissions (e.g., vehicle photos, license plates) must be clear, unaltered, and taken at the time of the interaction.
- You must comply with all field-specific requirements set by the Agency in their Lead Criteria.

4.4 Lead Dispute Process

- The Agency may dispute a lead within 5 business days of submission for quality violations.
 - Disputed leads are reviewed by WOML. Our decision is final.
 - Leads accepted without dispute after 5 business days are considered valid and payable.
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5. 1099 / Tax Acknowledgment

As an independent contractor, you are responsible for reporting and paying all applicable federal, state, and local taxes on your earnings from WOML.

5.1 IRS Form 1099-NEC

- If your total earnings through WOML exceed \$600 in a calendar year, WOML LLC will issue you an IRS Form 1099-NEC by January 31 of the following year.
- Earnings below \$600 are not reported on a 1099 but may still be taxable income — consult a tax professional.

5.2 Taxpayer Information

- You must provide accurate taxpayer information (legal name and Social Security Number or EIN) when requested.
- Failure to provide accurate taxpayer information may result in backup withholding at the applicable IRS rate.
- You are responsible for notifying WOML of any changes to your taxpayer information.

5.3 Self-Employment Taxes

- As an independent contractor, you may be subject to self-employment tax (15.3%) in addition to regular income tax.
- WOML recommends setting aside 25–30% of your earnings to cover federal and state tax obligations.
- WOML does not provide tax advice. Please consult a qualified tax professional.

5.4 Estimated Taxes

- If you expect to owe \$1,000 or more in taxes for the year, the IRS requires you to make quarterly estimated tax payments.
 - Quarterly payment deadlines are typically: April 15, June 15, September 15, and January 15.
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6. Intellectual Property & Platform Data

WOML LLC owns and operates the WOML platform, including all software, interfaces, algorithms, and systems. Nothing in this Agreement transfers any intellectual property rights to you.

6.1 Platform Ownership

- WOML LLC retains sole and exclusive ownership of the WOML platform, including all code, design, workflows, and proprietary systems.
- You are granted a limited, non-exclusive, non-transferable license to use the platform solely for the purpose of submitting leads under this Agreement.

6.2 Data Generated Through Platform Use

All data generated through your use of the WOML platform — including lead submission patterns, acceptance rates, payout histories, platform interaction data, and derived analytics — is the sole property of WOML LLC. You retain ownership of your personal information as described in Section 2, but you do not retain rights to the transactional and behavioral data generated through platform use.

6.3 Feedback

- Any suggestions, ideas, or feedback you provide regarding the WOML platform become the property of WOML LLC and may be used without compensation or attribution.
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7. Limitation of Liability

WOML is built to be reliable and fair. In the unlikely event that something goes wrong, the following terms define the extent of WOML's responsibility.

7.1 Liability Cap

To the fullest extent permitted by applicable law, WOML LLC's total aggregate liability to you for any claim arising out of or relating to this Agreement or your use of the WOML platform shall not exceed the total amount paid to you by WOML in the 30 days immediately preceding the event giving rise to the claim.

7.2 Exclusion of Consequential Damages

In no event shall WOML LLC, its members, officers, employees, or agents be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages, including but not limited to: lost profits, lost revenue, loss of data, or loss of business opportunity, regardless of the theory of liability and even if WOML has been advised of the possibility of such damages.

7.3 No Warranty

The WOML platform is provided "as is" and "as available." WOML makes no warranties, express or implied, regarding the platform's reliability, uptime, or fitness for a particular purpose. WOML does not guarantee that the platform will be uninterrupted, error-free, or that leads submitted will be accepted or paid.

8. Dispute Resolution & Arbitration

WOML is committed to resolving disputes quickly and fairly. The following process applies to any disagreement arising from your use of the platform or this Agreement.

8.1 Informal Resolution First

Before initiating any formal proceeding, you agree to contact WOML at support@womleads.com and describe your dispute in reasonable detail. WOML will respond within 10 business days. Both parties agree to attempt good-faith resolution for at least 30 days before proceeding to arbitration.

8.2 Binding Arbitration

If informal resolution is unsuccessful, all disputes arising out of or relating to this Agreement shall be resolved through final, binding arbitration administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules. The arbitration shall take place in Northampton County, Pennsylvania. A single arbitrator shall be appointed in accordance with AAA rules. The arbitrator's decision shall be final and may be entered as a judgment in any court of competent jurisdiction.

8.3 Class Action Waiver

YOU AND WOML AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, OR REPRESENTATIVE ACTION. Unless both parties agree otherwise in writing, the arbitrator may not consolidate more than one person's claims and may not preside over any form of a class or representative proceeding.

8.4 Exceptions

Notwithstanding the above, either party may seek injunctive or other equitable relief in a court of competent jurisdiction in Northampton County, Pennsylvania to prevent the actual or threatened misappropriation of intellectual property or breach of confidentiality obligations.

9. Force Majeure

WOML LLC shall not be liable for any delay or failure to perform its obligations under this Agreement to the extent such delay or failure is caused by circumstances beyond WOML's reasonable control, including but not limited to: acts of God, natural disasters, pandemic, war, terrorism, labor disputes, government actions, power failures, internet or telecommunications outages, third-party service provider failures (including Stripe, Sinch, or cloud infrastructure providers), cyberattacks, or any other force majeure event.

In the event of a force majeure, WOML will make reasonable efforts to notify affected providers and resume normal operations as soon as practicable. Payment obligations for leads already accepted prior to the force majeure event are not affected.

10. General Provisions

10.1 Entire Agreement

This Agreement, together with your channel's Deal Terms, constitutes the entire agreement between you and WOML LLC with respect to your use of the platform and supersedes all prior agreements, understandings, or representations.

10.2 Severability

If any provision of this Agreement is found to be unenforceable or invalid, that provision shall be limited or eliminated to the minimum extent necessary so that the Agreement shall otherwise remain in full force and effect.

10.3 Waiver

WOML's failure to enforce any right or provision of this Agreement will not be considered a waiver of those rights.

10.4 Assignment

You may not assign or transfer this Agreement or any of your rights hereunder without WOML's prior written consent. WOML may assign this Agreement in connection with a merger, acquisition, or sale of assets.

10.5 Electronic Acceptance

Your electronic acceptance of this Agreement during onboarding is legally binding under the Electronic Signatures in Global and National Commerce Act (E-SIGN Act, 15 U.S.C. § 7001 et seq.) and the Uniform Electronic Transactions Act (UETA). Your electronic signature carries the same legal weight as a handwritten signature.

Onboarding Acceptance Checklist

During the WOML onboarding process, you will be required to electronically confirm each of the following items. Your electronic confirmation constitutes a legally binding agreement under the E-SIGN Act and UETA.

1	Terms of Service — I have read and agree to WOML's Terms of Service (Section 1).
2	Privacy Policy & Data Use — I consent to the collection, use, and aggregated anonymized analysis of platform data as described in Section 2, including Section 2.3.
3	Independent Contractor Agreement — I understand I am an independent contractor, not an employee, and I agree to the non-solicitation and non-circumvention provisions (Section 3).
4	Lead Submission Standards — I will submit only accurate, consented, high-quality leads and agree to the 5-business-day dispute window (Section 4).
5	1099 / Tax Acknowledgment — I understand my tax reporting obligations as an independent contractor, including potential 1099-NEC reporting (Section 5).
6	Intellectual Property — I acknowledge WOML's exclusive ownership of the platform and all data generated through platform use (Section 6).
7	Limitation of Liability — I acknowledge the limitation of WOML's liability as described in Section 7.
8	Arbitration & Class Action Waiver — I agree to resolve all disputes through binding individual arbitration and expressly waive my right to participate in any class or collective action (Section 8).
9	Identity Verification — I consent to government-issued ID verification as part of the onboarding process.
10	Stripe Connect Enrollment — I authorize WOML to facilitate payouts to my linked bank account via Stripe Connect on the schedule defined in my Deal Terms.

By clicking 'I Agree' during onboarding, you acknowledge that you have read, understood, and agree to all terms in this document, including the binding arbitration clause and class action waiver in Section 8. This electronic acceptance is legally equivalent to a handwritten signature.

Contact & Questions

If you have questions about this Agreement, please contact WOML LLC at:

support@womleads.com | womleads.com | WOML LLC, Pennsylvania

This document was prepared by WOML LLC. For legal advice regarding your individual rights under this Agreement, please consult an independent attorney.